

Public

Ref: FOI/25/294

National Energy System Operator
Faraday House
Gallows Hill
Warwick
CV34 6DA

InformationRights@neso.energy

22 May 2026

Dear requester

You requested an internal review of our handling of your information request, which we received on 24 March.

This internal review is specific to your information request. I have reviewed the response to see if we have met the requirements of the Freedom of Information Act 2000 (FOIA) and/or the Environmental Information Regulations 2004 (EIR). This is separate from any other complaints processes you might be engaged in with us.

My role at NESO is Information Rights and Data Protection Officer and I am the senior manager at NESO responsible for compliance with the FOIA and the EIR. I have not been involved in the handling of your request before performing this review.

We have provided a timeline and summary of our request handling in Annexe 1 at the end of this letter. The focus of your concerns is our response to the first of the two questions in your original request.

My findings and decision

I agree that the exception at Regulation 12(4)(b) (manifestly unreasonable) applied to the searches, extraction and collation of information for England, Wales and Scotland, although in my opinion, the time required for each mod app was somewhat overestimated. Having had further conversations with the team who have looked at the process in more detail and run the process for an example case, we now believe the estimate to be approximately 20 minutes per mod app.

As we explained in the original response, NESO has undertaken some further data collection to improve the data relating to the demand connection queue. Whilst this work is still in progress we can use the current data to limit the number of mod apps to those that are currently reported as being for data centres. This reduces the total number of mod apps to approximately 170. At 20 minutes per mod app, this still represents over 56 hours of staff time to search, extract and collate the data for the whole of Great Britain and I agree that this is still manifestly unreasonable, particularly as this resource would be diverted from key connections reform related activities which are ongoing. However, the current data does allow us to refine the list further as you have indicated that you are primarily interested in the data for Scotland. There are 24 relevant queue items or projects that relate to Scotland and if we limit our focus to these items/projects we can review the mod apps for each without the activity being unduly burdensome and diverting significant resource away from key operational priorities. I have asked the relevant team to carry out this work so that I can provide the data to you no later than Tuesday 2 June.

We do need to caveat this by emphasising that the EIR relates to recorded information held at the time of the request, that we are providing the data which is currently held, and that there may be some gaps in the data as we continue to work with developers to better understand the demand connections queue.

Having considered our handling of your request, I find that the exception was applied correctly at the time, and still applies with regard to data for the whole of Great Britain, but that with the further work undertaken, we are now able to provide you with data for Scotland. In my opinion it was correct to apply the EIR rather than the Freedom of Information Act to this request and the public interest test was also correctly applied. We met the statutory deadline of 20 working days for our response to you. NESO has a duty to provide advice and assistance to requesters and I think that we could have provided more advice and assistance about how you might refine your request (e.g. by limited the geographical scope), but we did advise that you could limit your request and explained how we had arrived at the cost estimate.

Next steps

We will follow up with a response to your first question, but limited to Scotland, no later than Tuesday 2 June. If you still feel that we have not responded appropriately to your information request, you can complain to the Information Commissioner's Office (ICO). You should make complaints to the ICO within six weeks of receiving the outcome of an internal review.

The easiest way to lodge a complaint is through their website: www.ico.org.uk/foicomplaints. Alternatively, they can be contacted at: Wycliffe House, Water Lane, Wilmslow, SK9 5AF.

Regards,

[Name redacted]

Information Rights and Data Protection Officer

Annexe 1

Original Request

Your original request was received on 20 February 2026 and we acknowledged receipt on 20 February.

1. *Please could you tell us how many modification applications NESO has received for modifying connections initially given for BESS, into a colocation BESS plus Data Centre Connection, or to a Data Centre. Please give the number of connections and the capacity in MW separately for Scotland and for England and Wales and the month/year that these came in. How many of these applications have been granted and for what MW capacity?*
2. *In reference to Energy Future Scenarios 2025, or other subsequent NESO reports such as tRESP, what is the allocation of energy demand anticipated for data centres in Scotland, and over what time period?*

NESO Response

NESO responded on 23 March 2026.

We confirmed that we held recorded information with the scope of your request.

We refused the first part of your request under the EIR exception at Regulation 12(4)(b) (manifestly unreasonable) due to the significant resource that it would have taken to extract and collate the information. We provided information in response to your second question and provided some additional contextual information.

The full response is published in the FOI/EIR Disclosure Log on our website: [Freedom of Information and Environmental Information Regulations | National Energy System Operator](#).

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1 June 2026

Dear requester

You requested an internal review of our handling of your information request, which we received on 24 March and I sent a response on 22 May. The internal review related to the first part of your request:

Please could you tell us how many modification applications NESO has received for modifying connections initially given for BESS, into a colocation BESS plus Data Centre Connection, or to a Data Centre. Please give the number of connections and the capacity in MW separately for Scotland and for England and Wales and the month/year that these came in. How many of these applications have been granted and for what MW capacity?

I undertook to provide the data for Scotland to you no later than Tuesday 2 June. The data is provided at the end of this letter.

Next steps

I hope that this information provides the detail that you require. If you still feel that we have not responded appropriately to your information request, you can complain to the Information Commissioner's Office (ICO). You should make complaints to the ICO within six weeks of receiving the outcome of an internal review. The easiest way to lodge a complaint is through their website: www.ico.org.uk/foicomplaints. Alternatively, they can be contacted at: Wycliffe House, Water Lane, Wilmslow, SK9 5AF.

Regards,

[Name redacted]

Information Rights and Data Protection Officer

FOI Response (Scotland) – All applications are contracted/granted	
No. of BESS Modified to include Data Centres	8
Added MVA for Final Demand (Data Centre)	4 X 300 MVA 2 X 250 MVA 1 X 200 MVA 1 X 100 MVA Total 2000 MVA
Dates for Modification Applications received	December 2024
	December 2024
	December 2024
	December 2024
	December 2024
	January 2025
	January 2025
	August 2025